

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

In the matter of an Appeal made under
Section 331(1) of the Code of Criminal
Procedure Act No.15 of 1979 read with
Article 138 of the Constitution of the
Democratic Socialist Republic of Sri
Lanka.

Court of Appeal No:
CA/HCC/0121/2025
High Court of Colombo
Case No: HC/4716/2024

Raju Vishvendran

Accused-Appellant

Vs.

The Hon. Attorney General
Attorney General's Department
Colombo-12

Complainant-Respondent

BEFORE : **P. Kumararatnam, J.**
R. P. Hettiarachchi, J.

COUNSEL : **Lelani Sirisena for the Appellant.**
Janaka Bandara, DSG for the Respondent.

ARGUED ON : **19/06/2026**

DECIDED ON : **22/07/2026**

JUDGMENT

P. Kumararatnam, J.

The above-named Accused-Appellant (hereinafter referred to as the Appellant) was indicted by the Attorney General in the High Court of Colombo under Sections 54(A) (d) and 54(A) (b) of the Poisons, Opium and Dangerous Drugs Ordinance as amended by Act No. 13 of 1984 for Possession and Trafficking of 6.50 grams of Heroin (Diacetylmorphine) on 20.06.2021.

The prosecution had called 02 witnesses in support of their case and marked productions P1 to P9 and closed the case. When the defence was called, the Appellant had made a dock statement and closed his case.

After the consideration of the evidence presented by the prosecution and the defence, the Learned Trial Judge found the Appellant guilty on both counts and he was sentenced to life imprisonment on both counts on 03/12/2024.

Being aggrieved by the aforesaid conviction and sentence, the Appellant preferred this appeal to this court.

The Counsel for the Appellant informed this Court that the Appellant had given his consent to argue this matter in his absence. Hence, argument was taken up in his absence. However, the Appellant was connected via the Zoom platform from prison.

On behalf of the Appellant the following Grounds of Appeal have been raised:

1. The Learned High Court Judge failed to consider all material contradictions and improbabilities in the evidence of prosecution witnesses.
2. The Learned High Court Judge has erred in law and in fact by failing to evaluate the serious inconsistencies and omissions in the prosecution evidence relating to the alleged prior information and the identification of the accused at the time of the arrest.
3. The Learned High Court Judge failed to consider the improbabilities of the story of the prosecution – Failure to Prove Time, Urgency, and Proper Action on Alleged Information.
4. The Learned High Court Judge has erred in law and in fact in holding that the prosecution had proved the chain of custody of the alleged productions beyond reasonable doubt.
5. The Learned High Court Judge has erred in law and in fact in holding that the prosecution had proved possession of the alleged contraband beyond reasonable doubt.
6. The Learned High Court Judge has failed to consider material contradictions on a Crucial Fact; Material Contradiction Regarding Electricity.
7. The Learned High Court Judge erred in law and in fact in convicting the accused-appellant for the offence of trafficking in Heroin, in circumstances where the prosecution failed to prove the essential elements of the said offence beyond reasonable doubt.

8. The Learned High Court Judge has erred in law and in fact by failing to evaluate and give due consideration to material evidence elicited during the trial which supports the defence version.
9. The Learned High Court Judge erred in law in convicting the Accused by placing reliance on alleged weaknesses or deficiencies in the Defence, rather than strictly assessing whether the Prosecution had proved its case beyond reasonable doubt.

Background of the case.

On 20.06.2021, SI/Amarasekera attached to the Mattakkuliya Police Station received an information from his private informant via WhatsApp that a person named Raju alias Thambi was in possession of drugs and his residence was mentioned as No. D/39, Samithpura, Mattakkuliya. Acting on that information he had gone to the location with PW2 PC 68603 Jayathilake of the Mattakkuliya Police Station. When they reached the address given, they had seen the Appellant there with a bag in his possession and the Appellant had run into the house after seeing them. PW1 and PW2 had then apprehended the Appellant with the parcel. He was taken to the Mattakkuliya Police Station and the substances believed to be Heroin which were recovered from the Appellant were weighed. The gross weight of the substances was recorded as 71.963 grams.

The production was sent to the Government Analyst Department and the net quantity of Heroin (Diacetylmorphine) was recorded as 6.50 grams.

PW2 had given evidence and corroborated the evidence of PW1.

The Appellant in his dock statement admitted that drugs were found in his house but the Appellant denied that anything was recovered from him. He had said that the inmates of the house were arrested and some are tried for possession of drugs. His brother who was arrested had later been discharged.

In every criminal case the burden is on the prosecution to prove the case beyond a reasonable doubt against the accused person, and this burden never shifts. Hence an accused person has no burden to prove his case unless he pleads a general or a special exception in the Penal Code.

In the case of **Mohamed Nimnaz V. Attorney General** CA/95/94 held:

“A criminal case has to be proved beyond reasonable doubt. Although we take serious view in regard to offences in relation to drugs, we are of the view that the prosecutor should not be given a second chance to fill the gaps of badly handled prosecutions....”

In the case of **Attorney-General v. Rawther** 25 NLR 385, Ennis, J. states thus: [1987} 1 SLR 155

“The evidence must establish the guilt of the accused, not his innocence. His innocence is presumed in law, from the start of the case, and his guilt must be established beyond a reasonable doubt”.

In **Miller v. Minister of Pensions** (1947) 2 All E.R. 372 the court held that:

“the evidence must reach the same degree of cogency as is required in a criminal case before an accused person is found guilty. That degree is well settled. It need not reach certainty, but it must carry high degree of probability. Proof beyond reasonable doubt does not mean proof beyond the shadow of a doubt. The law would fail to protect the community if it admitted fanciful possibilities to deflect the course of justice. If the evidence is so strong against a man as to leave only a remote possibility in his favour which can be dismissed with the sentence, “of course it is possible, but not in the least probable,” the case is proved beyond reasonable doubt, but nothing short of that will suffice”.

In the case of **Sivathasan v. Attorney General** [2021] 2 SLR 290 it was held:

“A reasonable doubt is a real or actual and a substantial doubt, as opposed to an imaginary or flimsy doubt that may arise in the mind of the decider of facts (judge or the jury, as the case may be), following an objective consideration of all the attendant facts and circumstances.

A reasonable doubt is not the type of doubt that arises due to incorrect, abnormal or unreasonable comprehension of testimonies and other material which amount to evidence presented at the trial, or due to irrational fear, inappropriate sympathy, or unjustifiable mercy.”

As the grounds of appeal are inter-connected, I decided to consider those grounds jointly hereinafter. At the hearing, the Learned Counsel for the Appellant contended that the Learned Trial Judge failed to consider that the prosecution version did not pass the test of probability and erred in both facts and law when concluding that the prosecution proved the case beyond a reasonable doubt.

In this case, PW1 had vividly given evidence as to how the raid was conducted after receiving information while on duty. Acting on that information, he had successfully arrested the Appellant who was a total stranger to him.

Firstly, the Learned Counsel for the Appellant contended that the distance between the Mattakkuliya Police Station and the Appellant’s house has been contradicted by PW1 and PW2. According to PW1, the house is situated 350 meters away from the police. PW2 had said it is 300 meters away from the police. This cannot be considered a material contradiction as contended by the Counsel for the Appellant.

Next, the Learned Counsel contended that contradictory evidence had been given by PW1 and PW2 in respect of the time of arrest.

PW1 in his evidence in chief said that the Appellant was arrested at 18.50 hours. In the cross examination he had said it was 19.50 hours. In the re-examination he had said that the arresting time was 19.15 hours.

PW2 in his evidence said that the Appellant was arrested at 19.15 hours at his residence.

The Learned Counsel contended that the contradictory arresting time suggested that the Appellant was not arrested as claimed by the prosecution.

Although PW2 had contradicted the time of arrest in his examination in chief and cross examination, in the re-examination, he had tallied with the evidence given by PW2. Therefore, this has no bearing on the prosecution's case.

The Learned Counsel highlighted that PW1 and PW2 had contradicted the colour of the shirt worn by the Appellant at the time of his arrest. According to PW1 the Appellant had been wearing a yellow coloured long sleeved T-Shirt but according to PW2 it was a black coloured long-sleeved T-Shirt. Therefore, she contends that the evidence given by PW1 and PW2 differ on this material point. This contradiction has no effect on the root of the case, as both the witnesses had said that the Appellant was wearing a long-sleeved T-Shirt at the time of his arrest.

In this case, the Appellant in his dock statement admitted that he was arrested at his residence by the police. Further, he admitted that drugs had been recovered in a bag kept in his house. He denied that drugs had been recovered from his possession. The dock statement of the Appellant is reproduced *in verbatim* below:

Pages 116-117 of the brief.

මම ගෙදර හිටියේ නිදියගෙන නැගිටලා ඇඟපන එහෙම හෝදගෙන ඉන්නකොට තමයි පොලීසියෙන් ගෙදරට ආවේ. ඇවිල්ලා ගෙවල් සෝදිසි කලා. ගන්න බඩු ටික කියලා ඉවර වෙලා මම කිව්වා මම දන්නේ නැහැ කියලා. ඊලඟට අපිට ඔක්කොම ගැහුවා. ගහලා සෝදිසි කරලා කාමරේට ගිහිල්ලා බෑග් එකක් තිබුනා. ඒ බෑග් එකේ තිබුණු බඩු ගන්නා. මගේ අතේ

නිවුනේ නැහැ. මගේ අක්කගේ පුතාටත් ගහලා, මගේ යාලුවාටත් ගහලා, අයියාටත් ගහලා, ඔක්කොමලාම එක්කගෙන ගියා පොලීසියට. ගහලා එයාලා මට හයිකෝට් දැම්මා. පුතාටයි මගේ යාලුවාටයි කැල්ල කැල්ල පැකට්, නඩු දෙකක් දැම්මා. අයියව දවසක් තියාගෙන ඉඳලා පහුවෙනිදා උදේ එයාව නිදහස් කරලා යැව්වා. ගැහුවා හොඳටම. මගේ සන්නකයේ නම් බඩු තිබුනේ නැහැ. ගෙදර තමයි තිබුනේ. මට කීමට ඇත්තේ එපමණයි.

In this case PW1 and PW4 are key witnesses. Their evidence is clear, cogent and unambiguous. The Appellant had admitted that he was arrested by the police at his residence and that they had recovered drugs from his house.

The court considering all the evidence presented by the prosecution, without any hesitation relied on that evidence and convicted the Appellant. Further, their evidence has passed the probability test.

As the prosecution had proven this case beyond reasonable doubt, I affirm the conviction and the sentence imposed by the Learned High Court Judge of Colombo dated 03/12/2024 on the Appellant. Therefore, his appeal is dismissed.

The Registrar of this Court is directed to send this judgment to the High Court of Colombo along with the original case record.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J.

I agree.

JUDGE OF THE COURT OF APPEAL